

Multiple Choice

1. **Answer:** D

Options: A) Grounds include treason and bribery; B) Grounds include high crimes and misdemeanors; C) A majority vote in the House is necessary to invoke charges of impeachment; D) A three-fourths vote in the Senate is necessary to convict and remove from office

Note: The statement is correct because the U.S. Constitution requires a two-thirds majority vote in the Senate to convict and remove an impeached official, not a three-fourths vote.

2. **Answer:** C

Options: A) The congressional act always prevails; B) The valid treaty always prevails; C) The last in time prevails; D) The president decides

Note: The principle that "the last in time prevails" is based on the Supremacy Clause of the U.S. Constitution, which establishes that when a conflict arises between a congressional act and a valid treaty, the one enacted most recently will take precedence.

3. **Answer:** D

Options: A) Weapons or implements; B) marks, scars, wounds; C) Photographs; D) Hearsay

Note: Hearsay is not considered a correct form of real evidence because it is based on the out-of-court statements made by others and lacks the direct reliability required for admissibility in legal proceedings.

4. **Answer:** D

Options: A) interpretation of treaties; B) interpretation of admiralty laws; C) disputes between states and foreign citizens; D) all of the above

Note: The correct answer is "all of the above" because Article III of the U.S. Constitution grants federal courts jurisdiction over a broad range of cases, including those arising under the Constitution, federal laws, and treaties, as well as cases involving diversity of citizenship and admiralty law.

5. **Answer:** A

Options: A) Bill of attainder; B) Ex post facto law; C) Statutes; D) Ordinances

Note: A bill of attainder is a legislative act that declares a person or group guilty of a crime and imposes punishment without a judicial trial, which is prohibited by the U.S. Constitution under Article I, Section 9.

True / False

6. **Answer:** True

Options: A) True; B) False

Note: The name 'Child Finder Company' is appropriate because it clearly conveys the corporation's primary mission of locating missing children, aligning with the principles of clarity and transparency in corporate naming under constitutional law.

7. **Answer:** True

Options: A) True; B) False

Note: Under common law, landowners are not held liable for injuries to undiscovered trespassers caused by natural conditions on their property because they do not owe a duty of care to individuals who are on their land without permission and whose presence is unknown to the owner.

8. **Answer:** True

Options: A) True; B) False

Note: The best evidence rule generally does not apply in situations involving collateral matters, public records, or when documents are not used to prove their content, as these exceptions allow for the use of secondary evidence without the need for original documents.

9. **Answer:** False

Options: A) True; B) False

Note: Slander per se statements still require publication to a third party to be actionable under defamation law, as publication is a fundamental element of any defamation claim.

10. **Answer:** True

Options: A) True; B) False

Note: An F.O.B. (Free on Board) contract indicates that the seller is responsible for delivering goods to a specified location, at which point the buyer assumes risk and responsibility for the goods.

Long Form Response

11. **Answer:** A life tenant has the responsibility to protect their land from deterioration and ensure that its value is maintained throughout their tenure. This duty includes preventing permissive waste, which refers to the failure to take necessary actions that could prevent the land from falling into disrepair. In cases where third-party tortfeasors cause damage to the property, the life tenant may still be held liable for these damages, as they are expected to take reasonable steps to protect the land. This liability serves to reinforce the principle that a life tenant must actively manage the property, ensuring that any external actions do not detrimentally affect its condition or value. Therefore, the implications of permissive waste extend beyond mere neglect, placing a legal obligation on the life tenant to safeguard against both internal and external

threats to the property.

Note: correct because it accurately outlines the life tenant's obligation to maintain the property and avoid permissive waste, while also addressing their potential liability for damages caused by third parties due to their duty to take reasonable protective measures.

12. **Answer:** A Miranda waiver may be rendered ineffective due to several factors, particularly when the defendant is a juvenile, as in the case of a 15-year-old boy who confessed after two hours of questioning. Despite possessing normal intelligence for his age, the context of his age and inexperience with the legal system raises concerns about the voluntariness of his waiver. The prolonged nature of the interrogation can lead to psychological pressure, which may impair a juvenile's ability to fully understand their rights and the consequences of waiving them. Furthermore, the defendant's claim of not making a knowing and intelligent waiver highlights the importance of considering the developmental maturity of minors, as they may not grasp the implications of their confessions as adults do. Thus, the combination of age, interrogation tactics, and the defendant's cognitive maturity can collectively undermine the validity of a Miranda waiver.

Note: correct because it emphasizes that a juvenile's lack of experience with the legal system, combined with the psychological pressure from prolonged questioning, can undermine the voluntariness and understanding necessary for a valid Miranda waiver.